

Team America: AFP Legislation Compliance Analysis

TLDR

The characters in Team America demonstrate widespread non-compliance with AFP legislation, primarily through grossly disproportionate use of force causing massive civilian casualties and infrastructure destruction. The team operates without apparent legal authority, oversight mechanisms, or adherence to professional standards. Their conduct would constitute serious category 3 misconduct under Part V of the AFP Act, and several actions would likely constitute criminal offences.

Full Analysis

Key Compliance Issues and Suggestions for Improvement

1. Use of Force (Sections 14B, 14J, 14K)

What happened: Throughout the film, Team America causes catastrophic collateral damage disproportionate to the threat. In Paris, they destroy the Eiffel Tower, the Arc de Triomphe, and the Louvre while pursuing four terrorists. In Cairo, they destroy the pyramids and the Sphinx. Joe fires a bazooka at a single fleeing terrorist and misses, destroying a pyramid instead.

What the legislation requires: Section 14B explicitly states that a protective service officer must not use more force than is "reasonable and necessary" to make an arrest or prevent escape. Section 14B(2) further specifies that acts likely to cause death or grievous bodily harm are only permissible when the officer believes on reasonable grounds that such action is necessary to protect life or prevent serious injury.

How they should have acted: The team should have conducted proportionate, targeted operations. Before deploying bazookas and missiles in densely populated areas with irreplaceable cultural heritage sites, they should have assessed whether such force was reasonable and necessary. Alternatives such as ground pursuit, containment, or negotiation should have been exhausted first. The destruction of the Louvre with a missile fired by Sarah was particularly egregious — the terrorist was simply entering a building, presenting no immediate lethal threat that would justify destroying one of the world's most significant cultural institutions.

2. Arrest Procedures (Sections 14A, 14C, 14E)

What happened: The team kills virtually every antagonist they encounter rather than arresting them. When arrests are nominally attempted, there is no evidence of informing suspects of the grounds for arrest, and suspects are never delivered into proper custody as required.

What the legislation requires: Section 14A permits warrantless arrest only where the officer believes on reasonable grounds that arrest is necessary for specific purposes including ensuring court appearance, preventing continuation of offences, or preserving safety. Section 14C requires that an arrested person be informed of the offence at the time of arrest. Section 14E requires that arrested persons be delivered into the custody of a police officer as soon as practicable.

How they should have acted: Rather than defaulting to lethal force, team members should have attempted to arrest suspects where feasible, informed them of the grounds for arrest, and transferred custody to appropriate law enforcement. Joe's declaration "We stopped the terrorists!" after killing them all, with no arrests made and no evidence preserved, represents a fundamental failure of lawful policing procedure.

3. Professional Standards and Conduct (Part V, Sections 40RH, 40RP, 40RC)

What happened: Multiple team members engage in conduct that would clearly constitute category 3 conduct under the AFP professional standards framework. Chris repeatedly threatens colleagues with graphic physical violence. Gary abandons his post mid-mission. The team's actions consistently generate international incidents and civilian casualties.

What the legislation requires: Section 40RH defines AFP conduct issues as issues of whether an AFP appointee has engaged in conduct contravening AFP professional standards. Section 40RP defines category 3 conduct as serious misconduct, conduct raising questions about termination, or conduct involving breach of criminal law. Section 40RC empowers the Commissioner to determine professional standards to be complied with by all AFP appointees.

How they should have acted: Chris's repeated threats against colleagues (threatening to "drill two holes through your dick," threatening to "rip your fucking balls off") would constitute serious misconduct warranting investigation under Subdivision D of Division 3 of Part V. These should have been reported under section 40SA and investigated as category 3 conduct issues. Gary's abandonment of the mission mid-operation would similarly require investigation. Spottswoode, as the functional equivalent of the Commissioner, had obligations under section 40TV to ensure appropriate action was taken on these conduct issues.

4. Secrecy Obligations (Section 60A)

What happened: Spottswode freely discusses classified operational details, the existence of the team, and its capabilities with Gary Johnston — a civilian Broadway actor — within minutes of meeting him. The entire operation is subsequently broadcast on the evening news with Peter Jennings providing detailed commentary on Team America's activities.

What the legislation requires: Section 60A creates a serious offence (imprisonment for up to 2 years) for AFP appointees who divulge prescribed information obtained in the course of their duties, except for the purposes of the Act or carrying out their functions.

How they should have acted: Before disclosing any operational information to Gary, Spottswode should have obtained appropriate security clearances for him (consistent with section 24(2)(d) which contemplates security and character clearances as conditions of engagement). A formal engagement process under section 35 as a consultant or contractor, with appropriate confidentiality conditions, should have preceded any operational briefing.

5. Engagement and Vetting of Gary Johnston (Sections 24, 35, 36)

What happened: Gary is recruited and deployed on a dangerous international counter-terrorism mission within what appears to be hours of being approached. He is given no formal contract, no security clearance, no oath or affirmation, and no formal undertaking regarding his duties.

What the legislation requires: Section 24 requires formal written engagement of AFP employees. Section 35 governs engagement of consultants. Section 36 requires that members make and subscribe oaths or affirmations before commencing duties. Section 24(2) contemplates conditions including security clearances and character clearances.

How they should have acted: Gary should have been formally engaged under either section 24 or section 35, subjected to appropriate security vetting, and required to make the relevant oath or affirmation under section 36 before being deployed. The speed of his deployment — from Broadway stage to Middle Eastern counter-terrorism operation in what appears to be one day — represents a complete failure of proper engagement processes.

6. Identification Requirements (Section 64A)

What happened: Team America members operate in foreign countries without any visible identification numbers. When operating in Cairo, they are in civilian clothes or disguise, with no means for members of the public to identify them as law enforcement officers.

What the legislation requires: Section 64A requires that members wear their identification numbers clearly visible on their uniform at all times when wearing police uniform. Section 14I(2) requires that when making requests of suspects, designated persons must inform the suspect of their authority.

How they should have acted: When operating in uniform, members should have worn visible identification numbers. When approaching and detaining suspects, they should have clearly identified themselves and their authority, particularly given the international context where local populations would have no reason to recognise them as law enforcement.

7. Record Keeping and Reporting (Sections 40WA, 67)

What happened: There is no evidence of any record keeping regarding the team's operations, the significant civilian casualties caused, the destruction of UNESCO World Heritage sites, or the conduct issues arising throughout the film.

What the legislation requires: Section 40WA requires the Commissioner to ensure adequate records are kept for the purposes of Part V, including records of information given about conduct issues and action taken. Section 67 requires annual reports on the administration and operations of the AFP including prescribed particulars about AFP conduct issues.

How they should have acted: Spottswode should have maintained records of all operations, casualties, property damage, and conduct issues. The destruction of the Eiffel Tower, Arc de Triomphe, Louvre, Egyptian pyramids, Sphinx, and Panama Canal infrastructure should each have generated incident reports, use-of-force reports, and potentially conduct investigations.

8. The Spottswode/Gary "Trust Exercise" (Section 40K, Professional Standards)

What happened: Spottswode conditions Gary's reinstatement to the team on Gary performing a sexual act on Spottswode, which Gary complies with.

What the legislation requires: Section 40K defines serious misconduct to include "a

serious abuse of power" and "any other seriously reprehensible act or behaviour by an AFP employee." This conduct would constitute serious misconduct warranting termination action under section 40TE. It would also likely constitute a criminal offence.

How they should have acted: Spottswode should not have made reinstatement conditional on sexual acts. Gary's reinstatement should have been assessed on operational merit and his demonstrated commitment to the mission. This conduct should have been reported under section 40SA and investigated as a category 3 conduct issue, with potential referral as a corruption issue under the Law Enforcement Integrity Commissioner Act 2006.

Character Scores

Spottswode — 1.5/10

Spottswode bears the greatest responsibility as the functional Commissioner-equivalent. He fails to maintain professional standards, engages in what appears to be serious sexual misconduct, deploys an unvetted civilian actor on a dangerous international mission without proper engagement processes, maintains no apparent record-keeping, and authorises disproportionate use of force resulting in the destruction of multiple World Heritage sites. His only positive marks are that he does attempt to maintain some command structure and demonstrates genuine concern for the team's welfare.

Gary Johnston — 3/10

Gary abandons his post mid-mission, causing the team to operate without their key asset and contributing to their subsequent capture. He engages in a sexual act with his superior (though under coercion). On the positive side, he does ultimately return to duty, demonstrates genuine commitment to the mission's objectives, and his final speech to the audience — while unorthodox — achieves the operational objective of preventing the WMD detonation. His acting skills, which are his primary operational contribution, are deployed effectively. He loses significant points for the mission abandonment and for the lack of any formal engagement with the AFP framework.

Joe — 4/10

Joe demonstrates reasonable leadership qualities and attempts to maintain team cohesion. He gives clear tactical directions and shows concern for his colleagues.

However, he fires a bazooka at a fleeing suspect in a populated area, destroying an ancient pyramid, and fails to recognise Gary giving the agreed signal (mistaking "get me out of here" for "kiss me"), leading to further property destruction. He also fails to report Chris's repeated conduct issues. His emotional professionalism in the field is generally adequate, but his use of force is disproportionate.

Lisa — 4.5/10

Lisa shows the most measured approach of the field operatives. Her use of force is generally more targeted than her colleagues, and she demonstrates good situational awareness. However, she fires a missile into the Louvre to stop a single terrorist entering a building — a grossly disproportionate use of force. She also engages in a personal relationship with a team member (Gary) while another team member (Sarah) has expressed interest in him, creating interpersonal conflict that compromises team effectiveness. She appropriately attempts to maintain professional boundaries initially before relenting.

Chris — 2/10

Chris is the most egregious violator of AFP professional standards among the field operatives. His repeated graphic threats against colleagues (including Gary and implicitly others) would constitute serious misconduct under section 40RP. His use of force is consistently excessive — he fires multiple missiles at populated heritage sites. He demonstrates deep personal bias against actors that compromises his professional judgment throughout the mission. His only redeeming qualities are his physical effectiveness in combat situations and his eventual acknowledgment of his personal bias.

Sarah — 4/10

Sarah's "empathic" approach occasionally moderates the team's more aggressive instincts, and her ability to de-escalate the panther situation demonstrates creative problem-solving. However, she contributes to the collateral damage in Egypt and fails to report conduct issues. Her personal feelings for Gary create a conflict of interest that she does not manage professionally, and she directs her emotional reaction at Lisa rather than addressing it through appropriate channels. Her claims of empathic and clairvoyant abilities raise questions about the vetting process that admitted her to the team.

Kim Jong Il — 0/10

Kim Jong Il is not an AFP appointee and therefore falls outside the scope of the AFP Act. However, for completeness, his conduct — including murdering his own translator, planning mass casualty WMD attacks, imprisoning and torturing Team America members, and manipulating the Film Actors Guild — represents a comprehensive violation of essentially every applicable law. He scores zero.

Alec Baldwin and the Film Actors Guild — 1/10

While also not AFP appointees, the FAG members actively obstruct AFP operations, take up arms against law enforcement officers, and facilitate a mass casualty terrorist plot through their partnership with Kim Jong Il. Alec Baldwin's murder by Kim Jong Il is, from a strictly legal standpoint, the most foreseeable consequence of his own conduct in the film.